



m-77-341

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MAR 05 1997



Division of Minerals and Geology

March 4, 1997

Ms. Barbara Chiappone
State of Colorado
Division of Minerals and Geology
Department of Natural Resources
1313 Sherman St., Room 215
Denver, Colorado 80203

Regarding: Transfer of Mineral Reclamation Permit

Dear Barbara,

Enclosed are the documents related to the merger of Southwestern Cement Enterprises, Inc. into Southdown, Inc. If you have any questions, please let me know.

Sincerely,

Morris P. Widener
Administrative Services Manager

SOUTHDOWN, INC. AND SUBSIDIARIES (72-0296500)
1200 SMITH STREET, SUITE 2400 - HOUSTON, TEXAS 77002
U.S. CORPORATION INCOME TAX RETURN - 1991

Statement regarding the liquidation of Southwestern Cement Enterprises, Inc.

On April 29, 1991 Southwestern Cement Enterprises, Inc. distributed all of its assets to Southdown, Inc. in complete liquidation of its stock. The distribution was in accordance with Section 332 of the Internal Revenue Code and related regulations. The following information is submitted pursuant to Regulation 1.332-6 (b):

- (1) A certified copy of the Certificate of Ownership together with the Plan of Complete Liquidation and resolutions under which the plan was adopted and the liquidation authorized is attached.
- (2) Statement of costs and fair market value of property received:

	<u>Cost</u>	<u>FMV</u>
Assets	\$333,587,883	Unknown

- (3) Indebtedness of the liquidating corporation to the recipient corporation:

\$20,800,000

- (4) Ownership as of the date of adoption of the plan, up to and including the date of distribution in liquidation.

Southdown, Inc. owned 100% of the 1,000 shares of common stock of Southwestern Cement Enterprises, Inc.

Percent of Voting Power	100%
Cost or Basis	*
Date Acquired or Formed	11/22/77

* To Be Calculated

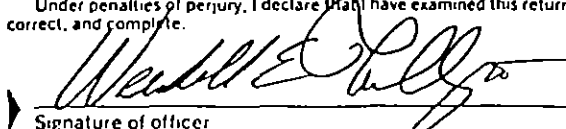
Corporate Dissolution or Liquidation
(Required under Section 6043(a) of the Internal Revenue Code)

OMB No. 1545-0041
Expires 4-30-93

Please type or print	Name of corporation Southwestern Cement Enterprises, Inc.		Employer identification number 74-1984892	
	Number and street (or P.O. box number if mail is not delivered to street address) 1200 Smith St., Suite 2400		Check type of return ☒ 1120 ☐ 1120L ☐ 1120-IC-DISC ☐ 1120S ☐ Other ▶	
	City or town, state, and ZIP code Houston, Texas 77002			
1 Date incorporated November 22, 1977	2 Place incorporated Delaware		3 Type of liquidation ☒ Complete ☐ Partial	
4 Internal Revenue Service Center where last income tax return was filed and tax year covered	Service Center Austin, Texas 73301		Tax year ending Month Year December 1990 April 1991	
5 Date of adoption of resolution or plan of dissolution, or complete or partial liquidation April 29, 1991	6 Tax year of final return Was final return filed with a parent corporation (consolidated return)? ☒ Yes ☐ No If "Yes," enter: Name of parent corporation ▶ Southdown, Inc. Employer identification number ▶ 72-0296500 IRS Center where consolidated return was filed ▶ Austin, Texas 73301			
7 Total number of shares outstanding at time of adoption of plan or liquidation			Common 1,000	Preferred
8 Dates of any amendments to plan of dissolution.			N/A	
9 Section of the Code under which the corporation is to be dissolved or liquidated.			332	
10 If this return concerns an amendment or supplement to a resolution or plan for which a return was filed, give the date filed.			N/A	

Attach a certified copy of the resolution or plan, together with all amendments or supplements not previously filed.

Under penalties of perjury, I declare that I have examined this return, including accompanying schedules and statements, and to the best of my knowledge and belief it is true, correct, and complete.

	Wendell E. Phillips, II Secretary	9/13/91
Signature of officer	Title	Date

Instructions

Paperwork Reduction Act Notice.—We ask for this information to carry out the Internal Revenue laws of the United States. We need it to ensure that taxpayers are complying with these laws and to allow us to figure and collect the right amount of tax. You are required to give us this information.

The time needed to complete and file this form will vary depending on individual circumstances. The estimated average time is:

Recordkeeping 5 hrs., 1 min.
Learning about the law or the form 6 min.
Preparing and sending the form to IRS 11 min.

If you have comments concerning the accuracy of these time estimates or suggestions for making the form more simple, we would be happy to hear from you. You can write to both the Internal Revenue Service, Washington, DC 20224, Attention: IRS Reports Clearance Officer, T:FP; and the Office of Management and Budget, Paperwork Reduction Project (1545-0041), Washington, DC 20503.

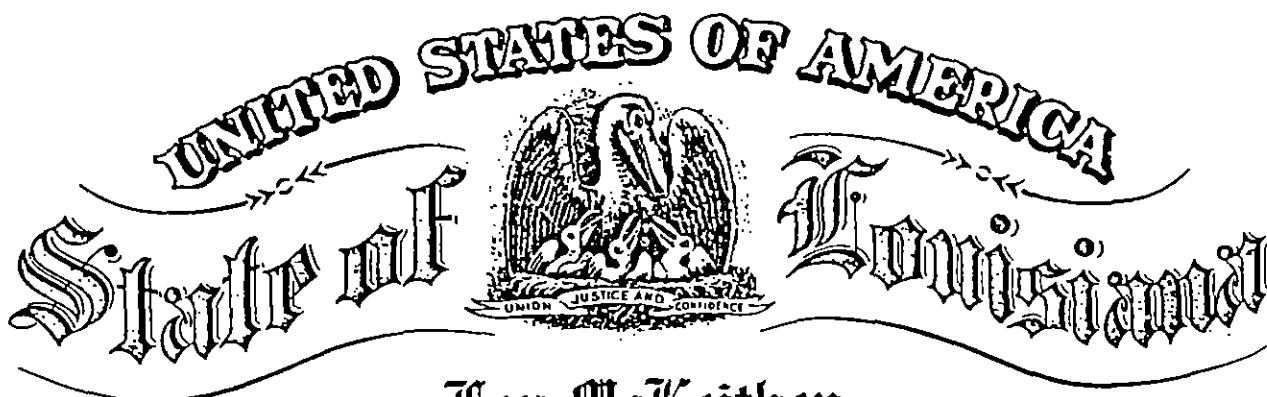
Who Must File.—A corporation files Form 966 if it is to be dissolved or if any of its stock is to be liquidated. Exempt organizations are not required to file Form 966. These organizations should see the instructions for Form 990 or 990 PF.

When To File.—File Form 966 within 30 days after the resolution or plan is adopted to dissolve the corporation or liquidate any of its stock. If the resolution or plan is amended or supplemented after Form 966 is filed, file an additional Form 966 within 30 days after the amendment or supplement is adopted. The additional form will be sufficient if you show the date the earlier form was filed and attach a certified copy of the amendment or supplement and all other information required by Form 966 and not given in the earlier form.

Where To File.—File Form 966 with the Internal Revenue Service Center where the corporation is required to file its income tax return.

Distribution of Property.—A corporation must recognize gain or loss on the distribution of its assets in the complete liquidation of its stock. For purposes of determining gain or loss, the distributed assets are valued at fair market value. Exceptions to this rule apply to liquidation of a subsidiary and to a distribution that is made pursuant to a plan of reorganization.

Signature.—The return must be signed and dated by the president, vice president, treasurer, assistant treasurer, chief accounting officer, or any other corporate officer (such as tax officer) authorized to sign. A receiver, trustee, or assignee must sign and date any return required to be filed on behalf of a corporation.



Box McKeithen
SECRETARY OF STATE

As Secretary of State, of the State of Louisiana, I do hereby Certify that

a Certificate of Ownership and Merger in accordance with
R.S. 1950, 12:112(G) whereby SOUTHWESTERN CEMENT
ENTERPRISES, INC., a Delaware corporation not qualified to
transact business in Louisiana, is merged into

SOUTHDOWN, INC.

Domiciled at New Orleans, Louisiana,

Signed by the Vice President and Assistant Secretary of
SOUTHDOWN, INC. on April 29, 1991, and acknowledged on April
29, 1991

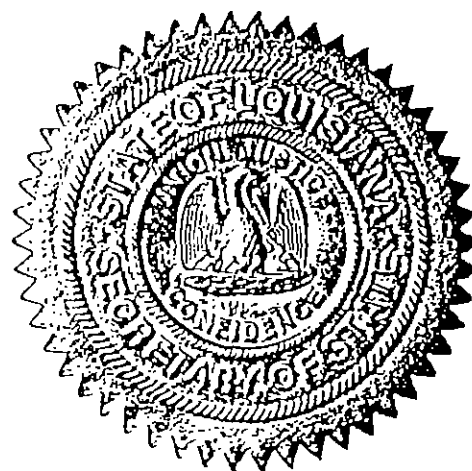
Was filed and recorded in this Office on April 29, 1991, in
the Record of Charters Book 343, and the merger will become
effective as of 9:00 a.m., Central Daylight Time, on April
29, 1991.

*In testimony whereof, I have hereunto set
my hand and caused the Seal of my Office
to be affixed at the City of Baton Rouge on,
April 29, 1991*

Box McKeithen

CH

Secretary of State



CERTIFICATE OF OWNERSHIP AND MERGER

MERGING

SOUTHWESTERN CEMENT ENTERPRISES, INC.

INTO

SOUTHDOWN, INC.

SOUTHDOWN, INC., a Louisiana corporation, pursuant to Section 112(G) of the Louisiana Business Corporation Law and Sections 251(d), 252(d), and 253 of the Delaware General Corporation Law, hereby certifies:

FIRST: That it is a corporation incorporated on April 4, 1930 pursuant to, and is duly organized and existing under, the Louisiana Business Corporation Law, the provisions of which permit the merger of a subsidiary corporation of another state into a parent corporation organized and existing under the laws of Louisiana;

SECOND: That it owns all the outstanding shares of stock of Southwestern cement Enterprises, Inc., a corporation incorporated pursuant to, and duly organized and existing under, the Delaware General Corporation Law;

THIRD: That the laws of the State of Louisiana and the State of Delaware permit a merger of a wholly-owned Delaware subsidiary corporation into its Louisiana parent corporation;

FOURTH: That SOUTHDOWN, INC., by the following resolutions duly adopted by its Board of Directors at a meeting held on April 24, 1991, such resolutions having not been rescinded and being in full force and effect on the date hereof, designated the Merger Committee of the Board of Directors:

RESOLVED, that the Board hereby designates, pursuant to La. R.S. 12:81(C)(7), a committee of the Board of Directors, which committee shall be designated the Merger Committee, and shall consist of the following two directors of Southdown, Inc., Clarence C. Comer and Edgar J. Marston III (with a third director of Southdown, Inc., Fentress Bracewell, hereby named as the alternate member to replace any absent or disqualified regular members), and which Merger Committee shall have and may exercise all of the powers of the Board of Directors with respect to authorizing and effecting the following mergers, and shall have power to authorize the seal of the corporation to be affixed to any documents relating to any of the following mergers:

- (a) the merger of Southdown Financing, Inc. into Southdown, Inc.;
- (b) the merger of Southwestern cement Enterprises, Inc. into Southdown, Inc.;
- (c) the merger of Southwestern Portland Cement Company into Southdown, Inc.;
- (d) the merger of Transmix Corporation into Southdown, Inc.;
- (e) the merger of Moore McCormack Resources, Inc. into Southdown, Inc.; and
- (f) the merger of Florida Mining & Materials Concrete Corp. into Southdown, Inc.;

FIFTH: That SOUTHDOWN, INC., by the following resolutions duly adopted by the Merger Committee of its Board of Directors at a meeting held on April 29, 1991, such resolutions having not been rescinded and being in full force and effect on the date hereof, determined to merge into itself said Southwestern cement Enterprises, Inc.:

The Parent and Subsidiaries Involved

WHEREAS, prior to April 29, 1991, Southdown, Inc., a corporation incorporated on April 4, 1930 pursuant to, and duly organized and existing under, the Louisiana Business Corporation Law, owned all of the outstanding shares of stock of Southdown Financing, Inc., a corporation duly incorporated pursuant to, and duly organized and existing under, the Delaware General Corporation Law;

WHEREAS, prior to April 29, 1991, Southdown Financing, Inc. owned all of the outstanding shares of stock of Southwestern cement Enterprises, Inc., a corporation duly incorporated pursuant to, and duly organized and existing under the Delaware General Corporation Law, and Southwestern cement Enterprises, Inc. was therefore an indirect, wholly-owned subsidiary of Southdown, Inc.;

WHEREAS, Southwestern cement Enterprises, Inc. owns all of the outstanding shares of stock of Southwestern Portland Cement Company, a corporation duly incorporated pursuant to, and duly organized and existing under, the Delaware General Corporation Law, and Southwestern Portland Cement Company is therefore an indirect, wholly-owned subsidiary of Southdown, Inc.;

WHEREAS, Southwestern cement Enterprises, Inc. owns all of the outstanding shares of stock of Transmix Corporation, a corporation duly incorporated pursuant to, and duly organized and existing under, the laws of the State of California, and Transmix Corporation is therefore an indirect, wholly-owned subsidiary of Southdown, Inc.;

WHEREAS, prior to April 29, 1991, Southdown Financing, Inc., Southwestern Portland Cement Company, and Transmix Corporation together owned all of the outstanding shares of stock of Moore McCormack Resources, Inc., a corporation duly incorporated pursuant to, and duly organized and existing under, the Delaware General Corporation Law, and Moore McCormack Resources, Inc. was therefore an indirect, wholly-owned subsidiary of Southdown, Inc.;

WHEREAS, Moore McCormack Resources, Inc. owns all of the outstanding shares of stock of Florida Mining & Materials Concrete Corp., a corporation duly incorporated pursuant to, and duly organized and existing under, the Florida Business Corporation Act, and Florida Mining & Materials Concrete Corp. is therefore an indirect, wholly-owned subsidiary of Southdown, Inc.;

Summary of the Mergers

WHEREAS, on April 29, 1991, under the relevant laws of the states of Louisiana and Delaware, Southdown, Inc. merged its then direct, wholly-owned subsidiary Southdown Financing, Inc. into Southdown, Inc., at which time Southwestern cement Enterprises, Inc. became a direct, wholly-owned subsidiary of Southdown, Inc.;

WHEREAS, now on April 29, 1991, under the relevant laws of the states of Louisiana and Delaware, Southdown, Inc. intends to merge its direct, wholly-owned subsidiary Southwestern cement Enterprises, Inc. into Southdown, Inc., at which time Southwestern Portland Cement Company and Transmix Corporation will become direct, wholly-owned subsidiaries of Southdown, Inc.;

WHEREAS, later on April 29, 1991, under the relevant laws of the states of Louisiana and Delaware, Southdown, Inc. intends to merge its then direct, wholly-owned subsidiary Southwestern Portland Cement Company into Southdown, Inc.;

WHEREAS, later on April 29, 1991, under the relevant laws of the states of Louisiana and California, Southdown, Inc. intends to merge its then direct, wholly-owned subsidiary Transmix Corporation into Southdown, Inc., at which time (by virtue of the mergers of Southdown Financing, Inc., Southwestern Portland Cement Company, and Transmix Corporation into Southdown, Inc.) Moore McCormack Resources, Inc. will be a direct, wholly-owned subsidiary of Southdown, Inc.;

WHEREAS, later on April 29, 1991, under the relevant laws of the states of Louisiana and Delaware, Southdown, Inc. intends to merge its then direct, wholly-owned subsidiary Moore McCormack Resources, Inc. into Southdown, Inc., at which time Florida Mining & Materials Concrete Corp. will become a direct wholly-owned subsidiary of Southdown, Inc.;

WHEREAS, later on April 29, 1991, under the relevant laws of the states of Louisiana and Florida, Southdown, Inc. intends to merge its then direct, wholly-owned subsidiary Florida Mining & Materials Concrete Corp. into Southdown, Inc.;

WHEREAS, on April 24, 1991, the Board of Directors of Southdown, Inc., by unanimous written consent, designated, pursuant to La. R.S. 12:81(C)(7), this committee of the Board of Directors, which it designated the Merger Committee, and which it made consist of the following two directors of Southdown, Inc., Clarence C. Comer and Edgar J. Marston III (with a third director of Southdown, Inc., Fentress Bracewell, named as the alternate member to replace any absent or disqualified regular members), and the Board provided that this committee shall have and may exercise all of the powers of the Board of Directors with respect to authorizing and effecting the mergers summarized above, and shall have power to authorize the seal of the corporation to be affixed to any documents relating to any of the mergers summarized above;

The Merger of Southwestern cement Enterprises, Inc. into Southdown, Inc.

RESOLVED, that Southdown, Inc. merge into itself its subsidiary, Southwestern cement Enterprises, Inc., and assume all of Southwestern cement Enterprises, Inc.'s liabilities and obligations, effective as of 9:00 a.m., Central Daylight Time, on April 29, 1991;

FURTHER RESOLVED, that the Chairman of the Board of Directors, the President or any Vice President and the Secretary or any Assistant Secretary of this corporation be and they hereby are directed to make, execute and acknowledge a certificate of ownership and merger setting forth a copy of the resolution to merge Southwestern cement Enterprises, Inc. into this corporation and to assume Southwestern cement Enterprises, Inc.'s liabilities and obligations and the date of adoption thereof and to file the same in the Office of the Secretary of State of the State of Delaware and a certified copy thereof in the Office of the Recorder of Deeds of New Castle County;

FURTHER RESOLVED, that the President or any Vice President and the Secretary or any Assistant Secretary of this corporation be and they hereby are directed to sign and acknowledge a certificate setting forth a copy of the resolution effecting the merger of Southwestern cement Enterprises, Inc. into this corporation and the date of adoption thereof and to file the same in the Office of the Secretary of State of the State of Louisiana;

FURTHER RESOLVED, that the proper officers of this corporation be, and each of them hereby is, directed to file a duplicate original of the certificate of merger issued by the Secretary of State of the State of Louisiana for record with the recorder of mortgages in Orleans Parish in the State of Louisiana;

FURTHER RESOLVED, that the officers of this corporation be, and the same hereby are, authorized to execute such other documents as may be required to implement the merger contemplated by these resolutions and to do all acts and things whatsoever, whether within or without the State of Louisiana or Delaware, that may be necessary or desirable to effect said merger; and

FURTHER RESOLVED, that this corporation shall survive such merger and agrees that it may be served with process in the State of Delaware in any proceeding for enforcement of any obligation of

Southwestern cement Enterprises, Inc. as well as for enforcement of any obligation of the surviving corporation arising from such merger, and it does hereby irrevocably appoint the Secretary of State of the State of Delaware as its agent to accept service of process in any such suit or other proceeding, the address to which a copy of such process shall be mailed by the Secretary of State of the State of Delaware being 1200 Smith Street, Suite 2400, Houston, Texas 77002 until this corporation shall have thereafter designated in writing to the said Secretary of State a different address for such purpose.

IN WITNESS WHEREOF, said SOUTHDOWN, INC. has caused this certificate to be signed on its behalf by a Vice-President and signed and attested by an Assistant Secretary, duly attested by its Assistant Secretary this 29 day of April, 1991.

SOUTHDOWN, INC.

By: Allan B. Korsakov
Allan B. Korsakov
Vice-President

By: Frank R. Fults
Frank R. Fults
Assistant Secretary

ACKNOWLEDGMENT

STATE OF LOUISIANA

§

ss.

PARISH OF EAST BATON ROUGE

§

BEFORE ME, the undersigned Notary Public, duly commissioned and qualified in and for said Parish and State, personally came and appeared Allan B. Korsakov and Frank R. Fults, to me known, who declared and acknowledged to me, Notary, and the undersigned competent witnesses that they are a Vice-President and an Assistant Secretary, respectively, of Southdown, Inc., that as such duly authorized officers, by and with the authority of the Merger Committee of the Board of Directors of said Corporation, they signed and executed the foregoing instrument, as their act and deed and as the free and voluntary act and deed of said Corporation, for and on behalf of said Corporation and for the objects and purposes therein set forth, and that the facts stated therein are true.

IN WITNESS WHEREOF, I have hereunto set my hand and official seal and the said appearers and the said witnesses have hereunto affixed their signatures this 29 day of April, 1991.

WITNESSES:

Michael D. Landry Allan B. Korsakov

Michael D. Landry Frank R. Fults

Angela J. Smith
NOTARY PUBLIC

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022780

EK 1144 PG0532

PAGE 1

State of Delaware

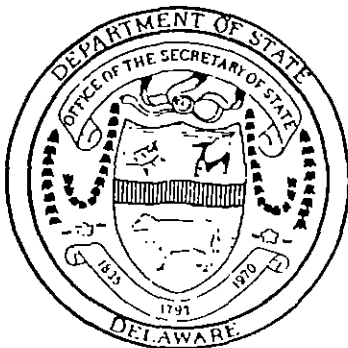


Office of Secretary of State

I, MICHAEL HARKINS, SECRETARY OF STATE OF THE STATE OF DELAWARE DO HEREBY CERTIFY THE ATTACHED IS A TRUE AND CORRECT COPY OF THE CERTIFICATE OF OWNERSHIP OF SOUTHDOWN, INC., A CORPORATION ORGANIZED AND EXISTING UNDER THE LAWS OF THE STATE OF LOUISIANA, MERGING SOUTHWESTERN CEMENT ENTERPRISES, INC. A CORPORATION ORGANIZED AND EXISTING UNDER THE LAWS OF THE STATE OF DELAWARE, PURSUANT TO SECTION 253 OF THE GENERAL CORPORATION LAW OF THE STATE OF DELAWARE, AS RECEIVED AND FILED IN THIS OFFICE THE TWENTY-NINTH DAY OF APRIL, A.D. 1991, AT 10 O'CLOCK A.M.

AND I DO HEREBY FURTHER CERTIFY THAT THE AFORESAID CORPORATION SHALL BE GOVERNED BY THE LAWS OF THE STATE OF LOUISIANA.

* * * * *



911195043

Michael Harkins
 Michael Harkins, Secretary of State

AUTHENTICATION: *3032439

DATE: 04/29/1991

RECEIVED FOR RECORD HCCO
 91 APR 30 A 7:51.5

3/11/91

APR 29 '91 01:42 24 DELIVERIES

STATE OF DELAWARE P.6
SECRETARY OF STATE
DIVISION OF CORPORATIONS
FILED 10:00 AM 04/29/1991
911195043 - 846157

**CERTIFICATE OF OWNERSHIP AND MERGER
MERGING
SOUTHWESTERN CEMENT ENTERPRISES, INC.
INTO**

**SOUTHDOWN, INC.
(PURSUANT TO SECTION 253 OF THE GENERAL
CORPORATION LAW OF THE STATE OF DELAWARE)**

Southdown, Inc., a Louisiana corporation (the "Corporation"), pursuant to Section 112(G) of the Louisiana Business Corporation Law (the "LBCL") and Section 253 of the General Corporation Law of the State of Delaware (the "GCL"), does hereby certify:

FIRST: That the Corporation is incorporated pursuant to the LBCL, the provisions of which permit the merger of a subsidiary corporation of another state into a Louisiana parent corporation;

SECOND: That the Corporation owns of record all outstanding shares of each class of the capital stock of Southwestern Cement Enterprises, Inc., a Delaware corporation ("SCEI") incorporated pursuant to the GCL, the provisions of which permit subsidiary Delaware corporations to merge into foreign parent corporations, when the laws of the foreign jurisdiction so allow;

THIRD: That the Corporation, by the following resolutions duly adopted by a duly appointed committee of its Board of Directors at 8:30 a.m. on April 24, 1991, determined to merge SCEI into itself on the conditions set forth in such resolutions:

RESOLVED, that Southdown, Inc. merge into itself its subsidiary, Southwestern Cement Enterprises, Inc., and as the surviving corporation, Southdown, Inc. will assume all of said subsidiary's liabilities and obligations; and further

RESOLVED, that the President or any Vice President and the Secretary or any Assistant Secretary of Southdown, Inc. be and they hereby are directed to make, execute and acknowledge a Certificate of Ownership and Merger, which shall state the date of adoption of these resolutions, and shall set forth a copy of the resolutions to merge said Southwestern Cement Enterprises, Inc. into Southdown, Inc. (which assumes thereby said subsidiary's liabilities and obligations), and said officers are directed to file such Certificate in the office of the Secretary of State of the State

of Delaware and a certified copy thereof in the Office of Recorder of Deeds of New Castle County.

FOURTH: That the Corporation agrees that it may be served with process in Delaware in any proceeding for enforcement of any obligation of SCEI or the Corporation arising from the merger; the Corporation hereby irrevocably appoints the Secretary of State of the State of Delaware (the "Secretary of State") as its agent to accept service of process in any such suit or other proceedings. A copy of such process shall be mailed by the Secretary of State to the Corporation at the following address (until the Corporation thereafter designates in writing to the Secretary of State a different address for such purpose): Southdown, Inc., 1200 Smith Street, Suite 2400, Houston, Texas 77002; and further

^{Effective Time}
FIFTH: That the Effective Time of the Merger contemplated by the above-referenced resolutions shall be 9:00 on the date of the filing of this Certificate of Ownership and Merger with the Secretary of State.

IN WITNESS WHEREOF, the Corporation has caused its corporate seal to be affixed and this Certificate to be signed by James L. Versky, its Vice President, and Wendell B. Phillips, II, its Assistant Secretary, this 29th day of April, 1991.

SOUTHDOWN, INC.

By: James L. Versky
Vice President

ATTEST:

By: Wendell B. Phillips, II

Assistant Secretary

(23)

**1991 Form 112 - Colorado State
Corporation Income Tax Return**or other tax year beginning 05/1, 1991, ending 12/31, 1991

PLACE LABEL HERE	Name	SOUTHDOWN, INC.		Colorado Account Number
	Number and Street	1200 SMITH STREET, SUITE 2400		
	City, State	HOUSTON, TEXAS	ZIP Code	77002

• A This return is being filed for

- ☐ (42) A corporation not apportioning income.
☒ (43) A corporation doing an interstate business apportioning income under the Colorado Income Tax Act (Schedule A, Page 2);
☐ (44) A corporation doing an interstate business apportioning income under the multistate compact (Schedule AS-4);
☐ (45) A corporation electing to pay a tax on its gross Colorado sales;
☐ (46) An S corporation (attach Schedule S);
☐ (47) Other, federal form filed

COMPLETE QUESTIONNAIRE AT
TOP OF PAGE 2 OF THIS FORM

Business code number per federal return	1. Federal taxable income from Form 1120 or 1120A or ordinary income from Form 1120S • 1	-27,351,886.
• 3240 Give year corporation began doing business in Colorado	Modifications increasing federal taxable income:	
	2. Federal net operating loss deduction • 2	
	3. Colorado income tax deduction • 3	
	4. Other additions, attach explanation • 4	
	5. Total lines 1, 2, 3, and 4 • 5	-27,351,886.
	Modifications decreasing federal taxable income:	
	6. Exempt federal interest • 6	
	7. Excludable foreign source income • 7	
	8. Other subtractions, attach explanation • 8	STMT 1 5,703,657.
	9. Total of lines 6, 7 and 8 • 9	5,703,657.
	10. Modified federal taxable income, line 5 minus line 9 • 10	-33,055,543.
	11. Colorado taxable income before net operating loss deduction • 11	-1,683,354.
	12. Colorado net operating loss deduction • 12	STMT 64,738,475.
13. Colorado taxable income, line 11 minus line 12 • 13	-66,421,829.	
• 1991 Check this box if this return is filed under extension ☒ X Give extended due date 10/15/92	14. Tax (rates at left). Check ☐ if from Schedule 112-TC • 14	NONE
	15. New business facility credit from Form 112-NFC • 15	
	16. Old investment tax credit from Form 112-CR • 16	
	17. New investment tax credit from Form 112-CR • 17	
	18. Enterprise zone investment credit from Form 112-CR • 18	
	19. Enterprise zone employee credit from Form 112-CR • 19	
	20. Other enterprise zone credits from Form 112-CR • 20	
	21. Other credits, from Form 112-CR • 21	
	22. Total credits, lines 15 through 21 • 22	
	23. Net tax, line 14 minus line 22 • 23	NONE
TAX RATES - For years beginning before July 1, 1991 Taxable Income Rate 1st \$50,000 5% Balance 5.3% - For years beginning on or after July 1, 1991 Taxable Income Rate 1st \$50,000 5% Balance 5.2% Make checks payable to and mail return to the COLORADO DEPARTMENT OF REVENUE 1375 SHERMAN ST DENVER CO 80261	24. Investment credit recapture • 24	NONE
	25. Total of lines 23 and 24 • 25	NONE
	26. Estimated tax and extension payments and credits • 26	NONE
	27. Balance due, line 25 minus line 26. Include penalty (96) and interest (97) • 27	NONE SEE STATEMENT
	28. Overpayment, line 26 minus line 25 • 28	
	29. Overpayment to be credited to estimated tax • 29	
	30. Overpayment to be refunded • 30	

Under penalties of perjury in the second degree, I declare that I have examined this return and to the best of my knowledge it is true, correct and complete.

(Signature)

(Date)

SECRETARY

(Title)

(Name of person or firm preparing return)

SACENT

07/22/92

V1.07

SOUTHWESTERN CEMENT ENTERPRISES, INC.

74-1984892

1991 - 112

(23)

1991 Form 112 - Colorado State Corporation Income Tax Return

"FINAL"

or other tax year beginning 1/1, 1991, ending 4/30, 1991

PLACE LABEL HERE	Name	SOUTHWESTERN CEMENT ENTERPRISES, INC.		Colorado Account Number
	Number and Street	1200 SMITH STREET, SUITE 2400		
	City, State	HOUSTON, TX	ZIP Code	77002-4486

A. This return is being filed for:

- ☒ (42) A corporation not apportioning income;
- ☐ (43) A corporation doing an interstate business apportioning income under the Colorado Income Tax Act (Schedule A Page 2).
- ☐ (44) A corporation doing an interstate business apportioning income under the multistate compact (Schedule AS-4).
- ☐ (45) A corporation electing to pay a tax on its gross Colorado sales.
- ☐ (46) An S corporation (attach Schedule S).
- ☐ (47) Other, federal form filed

COMPLETE QUESTIONNAIRE AT TOP OF PAGE 2 OF THIS FORM

Business code number per federal return	1 Federal taxable income from Form 1120 or 1120A or ordinary income from Form 1120S	1	-2,010,932.
• 3240	Modifications increasing federal taxable income:		
Give year corporation began doing business in Colorado	2 Federal net operating loss deduction	2	
• 1984	3 Colorado income tax deduction	3	
Check this box if this return is filed under extension	4 Other additions, attach explanation	4	
☒	5 Total lines 1, 2, 3, and 4	5	-2,010,932.
Give extended due date	Modifications decreasing federal taxable income:		
10/15/92	6 Exempt federal interest	6	
	7 Excludable foreign source income	7	
	8 Other subtractions, attach explanation	8	
	9 Total of lines 6, 7 and 8	9	
	10 Modified federal taxable income, line 5 minus line 9	10	-2,010,932.
	11 Colorado taxable income before net operating loss deduction	11	-2,010,932.
	12 Colorado net operating loss deduction	12	62,727,543.
	13 Colorado taxable income, line 11 minus line 12	13	-64,738,475.

TAX RATES	14 Tax (rates at left) Check ☐ If from Schedule 112-TC	14	NONE
- For years beginning before July 1, 1991	15 New business facility credit from Form 112-NFC	15	
Taxable Income Rate	16 Old investment tax credit from Form 112-CR	16	
1st \$50,000 5%	17 New investment tax credit from Form 112-CR	17	
Balance 5.3%	18 Enterprise zone investment credit from Form 112-CR	18	
	19 Enterprise zone employee credit from Form 112-CR	19	
- For years beginning on or after July 1, 1991	20 Other enterprise zone credits from Form 112-CR	20	
Taxable Income Rate	21 Other credits, from Form 112-CR	21	
1st \$50,000 5%	22 Total credits, lines 15 through 21	22	
Balance 5.2%	23 Net tax, line 14 minus line 22	23	NONE
Make checks payable to and mail return to the COLORADO DEPARTMENT OF REVENUE 1375 SHERMAN ST DENVER CO 80261	24 Investment credit recapture	24	NONE
	25 Total of lines 23 and 24	25	NONE
	26 Estimated tax and extension payments and credits	26	
	27 Balance due, line 25 minus line 26. Include penalty (96) and interest (97) • NONE if applicable SEE STATEMENT	27	NONE
	28 Overpayment, line 26 minus line 25	28	
	29 Overpayment to be credited to estimated tax	29	
	30 Overpayment to be refunded	30	

Under penalties of perjury in the second degree, I declare that I have examined this return and to the best of my knowledge it is true, correct and complete

SECRETARY
(Title)

(Name of person or firm preparing return)

SOUTHWESTERN CEMENT ENTERPRISES, INC.

74-1984892

EFFECTIVE APRIL 30, 1991, THE FOLLOWING CORPORATIONS WERE LIQUIDATED INTO THEIR PARENT, SOUTHDOWN, INC. UNDER SECTION 332 OF THE INTERNAL REVENUE CODE OF 1986:

SOUTHWESTERN PORTLAND CEMENT COMPANY

SOUTHWESTERN CEMENT ENTERPRISES, INC.

MOORE MCCORMACK RESOURCES, INC.

FLORIDA MINING & MATERIALS CONCRETE CORP.

TRANSMIX CORPORATION

SOUTHDOWN FINANCING, INC.

